

Sanjay Kumar Upadhayaya v. U.P. Power Corporation Ltd.

High Court of Judicature at Allahabad · Division Bench · 2 December 2021 · Writ-C No. 38711 of 2011 · **Writ petition dismissed as withdrawn.**

HEADNOTE

A writ challenging a 31.7.2010 theft assessment on the ground that respondent no.4 was not authorised under clause 7.3(I) of the U.P. Electricity Supply Code, 2005 was dismissed as withdrawn. Earlier Division Benches had stayed further action on the assessment, later conditioning the stay on a bank guarantee of half the provisional bill and payment of future charges, without deciding the authorisation or assessment procedure.

FACTUAL SUMMARY

Sanjay Kumar Upadhayaya challenged UPPCL's 31.7.2010 theft assessment, arguing that respondent no.4 was not authorised under clause 7.3(I) of the U.P. Electricity Supply Code, 2005 to assess theft. The High Court sought instructions on whether a provisional assessment inviting objections had preceded the final order, stayed further action, and later continued the stay of proceedings on the provisional bill subject to a bank guarantee of half the billed amount and payment of future charges. He later withdrew the writ.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.3(I)

authority to assess electricity theft

HOLDING

The writ challenging the 31.7.2010 theft assessment, including the plea that respondent no.4 was not authorised under clause 7.3(I) of the U.P. Electricity Supply Code, 2005 to assess theft, was dismissed as withdrawn. Interlocutory orders had stayed further action on the assessment, later modified so that proceedings on the provisional assessment notice remained stayed if the petitioner filed a bank guarantee of half the billed amount within three weeks and continued to pay future charges. ¶ 1-4

FLAG clause cited as 7.3 (I); not restated as 7.3.1 or 7.3(i)

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER RESPONDENT NO.4 WAS AUTHORISED UNDER CLAUSE 7.3(I) OF THE U.P. ELECTRICITY SUPPLY CODE, 2005 TO MAKE A THEFT ASSESSMENT

Raised as the basis for interim relief; writ withdrawn without a merits decision ¶ 2

NOT DECIDED — WHETHER A PROVISIONAL ASSESSMENT INVITING OBJECTIONS PRECEDED THE FINAL ASSESSMENT IN THE THEFT CASE

Instructions were sought; not decided ¶ 1